

PURDY v MERRICK

24CV47781

PLAINTIFF'S MOTION FOR PARTITION

This case involves a complaint to partition real property located at 1439 Calaveritas Road, San Andreas, CA 95249 ("Property") brought by Kristie Purdy ("Purdy") and Steven Savickas ("Savickas") (collectively "Plaintiffs") against Robert Merrick ("Defendant").

Now before the Court is Plaintiffs' motion for partition of real property ("Motion").

I. Factual and Procedural Background

Pursuant to Quitclaim Deed dated August 16, 2023, Defendant transferred a one-half interest in the Property to Plaintiffs, with each plaintiff receiving their interest as sole and separate property. (Complaint ¶ 7, Ex. 1.) Accordingly, Plaintiffs and Defendant each hold an undivided one-half interest in the Property. (*Id.* ¶ 8.) Plaintiffs allege that the value of the Property is approximately \$350,000, which exceeds the encumbrance[s] on the Property after costs of sale. (*Id.* ¶ 9.)

On or about April 27, 2024, Plaintiffs and Defendant entered into an agreement ("Agreement") (Complaint ¶ 12, Ex. 2.) Pursuant to the Agreement, Defendant acknowledged that he was responsible for significant back taxes and other expenses and would repay Plaintiffs these costs from his share of the sale of the Property. (*Id.*) Plaintiffs allege that Defendant now owes them \$165,576.52, which includes items covered by the Agreement as well as additionally incurred expenses. (Complaint ¶¶ 12-13.)

The Complaint and summons was filed on December 17, 2024. It does not appear that Defendant has been served and he has not filed any appearance in Court.

II. Legal Standard and Analysis

A co-owner of real property may file an action for partition, severing unity of possession in that property. (Code Civ. Proc., § 872.210, subd. (a)(1).) “A co-owner of property has an absolute right to partition unless barred by a valid waiver.” (Code Civ. Proc., § 872.710, subd. (b).) Partition allows cotenants to “avoid the inconvenience and dissension arising from sharing joint possession of land” and facilitates transmission of title. (LEG Investments, *supra*, at 493.) If the party is entitled to partition, the trial court makes an interlocutory judgment determining the interests of the parties in the property and may order the manner of partition at that time. (§ 872.720, subd. (a).)

Under Code of Civil Procedure section 872.030, “[t]he statutes and rules governing practice in civil actions generally apply to actions under this title except where they are inconsistent with the provisions of this title.” (Code Civ. Proc. § 872.030.) To obtain a judgment in a civil action typically requires a trial, which is consistent with the partition statutes. (Code Civ. Proc. § 872.610 [“The interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action.”]; Code Civ. Proc. 872.210 [“At the trial, the court shall determine whether the plaintiff has a right to partition.”].) That is, until the rights of and interests of all the parties have been determined, the Court cannot order partition. (*Withington v. Collins* (1943) 60 Cal.App.2d 110, 114.)

Although the Court determined ownership interests in an earlier trial involving these parties and this parcel of property, this determination does not obviate the need for defendant to be served with the current summons and complaint, let alone the instant motion. Lack of service equals lack of notice which violates the constitutional requirement of due process in any legal proceeding. As the Court’s file contains no proof of service of the summons, complaint, or the instant motion, plaintiffs’ motion is **DENIED**, without prejudice to refile with proper service of all relevant pleadings.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.